

Line 1

Case Name: *American Express National Bank*
v.
Christophe Juniel a.k.a. Christopher J. Juniel, et al.

Case No.: 25CV477825

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant Christopher Juniel moves under Code of Civil Procedure Section 418.10 to quash service of Summons on the following grounds:

1. The Summons and Complaint were not properly served under California law.
2. The Court lacks personal jurisdiction under the terms of the governing agreement.

Notice of Motion (the “Motion”) at 1:22-28 (filed: Jan. 12, 2026).

The Motion came on for hearing on August 21, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Factual Allegations

On April 18, 2017, the parties entered into an agreement for a credit card. Defendant has a current outstanding balance of \$25,321.62. (Complaint at ¶¶ 1, 8, 10 & its Exs. A, B) (filed: Oct. 16, 2025). Plaintiff initiated this action on October 16, 2025, alleging a single cause of action for breach of contract. (*Id.*)

II. Legal Standard on Motion to Quash

A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow” may move “to quash service of summons on the ground of lack of jurisdiction of the court over him or her” that results from lack of proper service. (Code. Civ. Proc. § 418.10(a)(1). A defendant has 30 days after the service of the summons to file a responsive pleading. (Code. Civ. Proc. § 412.20(a)(3).) “Service of process, under longstanding tradition in our system of justice, is fundamental to any procedural imposition on a named defendant.” (*AO Alfa-Bank v. Yakovlev* (2018) 21Cal.App.5th 189, 202; internal quotations marks and citation omitted.) To establish personal jurisdiction, compliance with statutory procedures for service of process is essential. (*Kremerman v. White* (2021) 71 Cal.App.5th 358, 371.) Defendant’s knowledge

of the action does not dispense with statutory requirements for service of summons. (*Kappel v. Bartlett* (1988) 200 Cal.App.3d 1457, 1466.)

When a defendant moves to quash service of process on jurisdictional grounds, the plaintiff has the initial burden of demonstrating facts justifying the exercise of jurisdiction. (*Jayone Foods, Inc. v. Aekyung Industrial Co. Ltd.* (2019) 31 Cal.App.5th 543, 553.) “The plaintiff must do more than merely allege jurisdictional facts. It must present evidence sufficient to justify a finding that California may properly exercise jurisdiction over the defendant.” (*In re Automobile Antitrust Cases I & II* (2005) 135 Cal.App.4th 100, 110.) “If the plaintiff meets this initial burden, then the defendant has the burden of demonstrating that the exercise of jurisdiction would be unreasonable.” (*Jayone Foods, supra*, 31 Cal.App.5th at p. 553.)

III. Analysis of Motion

A. Service of Process was Proper.

“When a defendant challenges the court’s personal jurisdiction on the ground of improper service of process the burden is on the plaintiff to prove ... the facts requisite to an effective service.” (*Summers v. McClanahan* (2006) 140 Cal.App.4th 403, 413.) The plaintiff must demonstrate by a preponderance of the evidence that proper service of the summons and complaint was effectuated. (*Bolkiah v. Superior Court* (1999) 74 Cal.App.4th 984, 991.)

Generally, the filing of a proof of service that complies with applicable statutory requirements creates by itself a rebuttable presumption that service was proper. (*Dill v. Berquist Construction Co.* (1994) 24 Cal.App.4th 1426, 1441.) The rebuttable presumption can only be dispelled by contradictory evidence. (*Craig v. Brown & Root* (2000) 84 Cal.App.4th 416, 421.) Once the presumption is dispelled, the trier of fact shall determine the existence or non-existence of the fact from the evidence and any appropriate inferences that may be drawn from it. (*Bonzer v. City of Huntington Park* (1993) 20 Cal.App.4th 1474, 1479.) Thus, once the presumption of proper service is gone, the trier of fact must weigh the evidence and decide whether or not service was effected pursuant to the applicable statutory requirements. (*Craig, supra*, 84 Cal.App.4th at 421-22.)

Here, two separate service attempts are at issue: (1) personal service of Christophe Juniel at his home on October 28, 2025, at 3:23 p.m. and (2) substitute service of Jane Doe at Mr. Juniel’s home on January 8, 2026, at 4:38 p.m. after diligent attempts. The first registered process server’s proof of service (filed October 28, 2025) established a presumption that Defendant was personally served on October 28, 2025, at his residence. However, Defendant argues that he was at work on this date, during the entire time of the alleged service and submits his declaration and his work schedule as evidence to rebut the presumption that the personal service was proper. (Motion at 7:1-8:6) In his declaration, Defendant attests that no one handed him legal documents on October 28, 2025, he did not identify himself to any process server, and he never spoke to a process server. Defendant’s attached work schedule shows he was scheduled “On Duty 0900 - 1800” on

October 28, 2025. (Juniel Decl. ¶¶ 3, 7; Exhibit A)

Plaintiff contends Defendant's work schedule should be excluded since it is not properly authenticated and thus he can only rely on his self-serving statement that he was not at home.

Notwithstanding the correctness or incorrectness of the October 28, 2025 service attempt, a second service attempt was made on January 8, 2026, via substituted service on Jane Doe, who identified herself as the co-resident. The proof of service and the accompanying Declarations of Reasonable Diligence and Mailing show three attempts were made on varied dates to serve the Defendant at his residence prior to the substituted service, and a copy of the documents were mailed to his residence. (Proof of service filed January 9, 2026).

This substituted service is facially compliant with Code Civ. Proc. § 415.20, which allows a copy of the summons and complaint to be left at the person's residence in the presence of a competent member of the household – after failed reasonable attempts at personal delivery - and by thereafter mailing a copy of the documents to the person to be served at the place where the copies were left. (Code Civ. Proc. § 415.20(b).)

Notably, Defendant does not contest the appropriateness of the substituted service, nor does he argue that he was not home on January 8, 2026.

Taking all these facts and circumstances into account, and in the broad exercise of its discretion, the Court finds and rules that the substituted service of process was proper here.

Accordingly, as service of process was proper here, Defendant's Motion to quash based on improper service of process fails.

B. This California Court has Personal Jurisdiction over Defendant who is a California resident.

To comport with federal and state due process, California may only exercise jurisdiction when a defendant has sufficient minimum contact with the state to satisfy traditional notions of fair play and substantial justice. California recognizes two ways in which the constitutional "minimum contacts" requirement may be satisfied. General jurisdiction exists where the nonresident defendant's contacts with the forum state are so "extensive or wide-ranging" as to justify jurisdiction even for purposes unrelated to the defendant's contacts. (*Safe-Lab, Inc. v. Weinberger* (1987) 193 Cal.App.3d 1050, 1053; *Boaz v. Boyle & Co.* (1995) 40 Cal.App.4th 700, 717)

Citing *Burger King Corp. v. Rudzewicz* (1985) 471 U.S. 462, Defendant argues that there is no substantial connection between his forum-related activities and the cause of action because the credit card agreement contains a governing law clause stating that "Utah law and federal law govern this Agreement and your Account" and that "We are located in Utah. We hold your Account in Utah. We entered into this Agreement with you

in Utah.” (Motion at 8:9-14; Exhibit A) The Court rejects these arguments.

Defendant’s reliance on *Burger King* is misplaced because *Burger King* addresses specific personal jurisdiction over *nonresident* defendants based on minimum contacts with the forum state. Here, Defendant is a California resident, so the Court has general personal jurisdiction over him. Additionally, Plaintiff’s claim arises directly from Defendant’s California contacts: Defendant obtained and used the credit account while residing in California, received account statements in California, and was obligated to make payments from California.

Moreover, a choice-of-law clause designating Utah law does not divest a California court of jurisdiction over a California resident. Choice of law provisions determine what substantive law applies. They are not forum-selection provisions that divest California courts of jurisdiction. California courts routinely apply the substantive law of another state when appropriate while exercising jurisdiction over parties properly before them.

Accordingly, as this Court has personal jurisdiction over Defendant, Defendant’s Motion to quash based on lack of personal jurisdiction fails.

IV. Conclusion & Order

Defendant’s Motion to quash service of summons for improper service and lack of personal jurisdiction is **DENIED**.

SO ORDERED.

Date: August 21, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

Line 2

Case Name: *Park Capital Management, LLC v. Satya Chillara, et al.*

Case No.: 22CV402044

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Park Capital Management, LLC (“Park Capital”) moves for summary judgment under Code of Civil Procedure Section 437c on the ground that there is no genuine material dispute of fact with respect to the fact that Orchard Yield Funds, LLC is, and always has been, the general partner of Orchard Yield Fund I LP. Notice of Motion (the “Motion”) at 1:24-2:1 (filed: Jan. 22, 2026).

The Motion came on for hearing on August 21, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, including all the evidence and separate statements and authorities submitted by each party, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Background

Plaintiff Park Capital Management, LLC (“Plaintiff” or “Park Capital”), derivatively on behalf of Orchard Yield Fund I LP (“the Orchard Partnership”), brings this action against defendants Satya Chillara (“Chillara”), Rajs Funds LLC (“Rajs Funds”), and Sunil Dhar (“Dhar”) (collectively, “Defendants”). The Orchard Partnership is named as a nominal defendant.

This is a derivative action for declaratory relief. According to the allegations of the Complaint, on March 25, 2016, general partner Orchard Yield Funds LLC (“Orchard”) and limited partners Chillara, Dhar, and Park Capital (collectively, “Limited Partners”) entered into a limited partnership agreement (“LP Agreement”) to form the Orchard Partnership. (Complaint, ¶¶ 3, 4, 10, 11.) The Orchard Partnership was formed for the sole purpose of investing in Double L Ranches, LLC (“Double L”). (UMFs 1, 11.) Adam McAfee (“McAfee”) teamed up with Chillara to find investors for Double L, to invest via the Orchard Partnership. (UMF 3.) Thereafter, the LP Agreement was entered into.

The LP Agreement states that the only general partner at the time of formation was Orchard and that the general partner may be removed only “‘for cause’” when such cause is “‘reasonably determined in good faith upon the **unanimous** affirmative vote (called expressly for that purpose) of all the Limited Partners.’” (Complaint, ¶¶ 10, 12 [emphasis original].) On July 14, 2019, Chillara and Dhar called for a meeting to vote on the removal of Orchard as the general partner. (Complaint, ¶ 13.) Park Capital voted against the removal, but Chillara and Dhar purportedly rejected Park Capital’s vote. (Complaint, ¶ 14.) Park Capital contends that the vote to remove Orchard was invalid and emailed Chillara and Dhar to dispute the validity of the vote, and thus, there was no unanimous